

**CHAPTER xxxi.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Highland Railway. A.D. 1915.
—
[24th June 1915.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Viet.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Highland Railway Order Confirmation Act 1915. Short title.

A.D. 1915.

SCHEDULE.

HIGHLAND RAILWAY.

*Highland
Railway.*

Provisional Order to extend the time for the completion of certain Railways authorised by the Highland Railway (Additional Powers) Act 1897 to sanction a widening of the Highland Railway from Clachnaharry to Clunes already constructed to authorise the borrowing of further money and for other purposes.

WHEREAS the Highland Railway Company (hereinafter called "the Company") were authorised by the Highland Railway (Additional Powers) Act 1897 (hereinafter referred to as "the Act of 1897") to construct certain railways therein described:

And whereas it is expedient that the period limited by the Act of 1897 as extended by the Highland Railway Order 1901 (hereinafter referred to as "the Order of 1901") the Highland Railway Act 1905 and the Highland Railway Order 1910 for the completion of the said railways by the Act of 1897 authorised should be further extended:

And whereas the Company were authorised by the Order of 1901 to construct a widening of their railway between Clachnaharry and Lentrane in the county of Inverness and the Company purchased nearly all the land they were authorised to acquire for that purpose within the period limited by that Order and the lands not purchased within that period were subsequently purchased by agreement:

And whereas the Company did not complete the said widening within the period limited by the Order of 1901 but they have completed it since that date and they have also extended the widening to Clunes in the parish of Kirkhill in the county of Inverness having acquired the lands required for such extension of the widening by agreement:

And whereas it is expedient that the construction of the said widening between Clachnaharry and Lentrane and the extension thereof to Clunes and the purchase of the requisite lands and the application of the funds of the Company to such purposes should be sanctioned and confirmed:

And whereas the Company in present circumstances cannot raise further capital by means of either ordinary or preference shares except upon terms not only injurious to the holders of the existing preference and ordinary stocks but also to the permanent interests of the Company but they are in a position to raise the capital by means of mortgages bonds debentures or debenture stock upon terms which will impose a much less onerous burden upon the revenue of the Company and it is therefore expedient that they should be authorised to raise the sum of four hundred thousand pounds by mortgages bonds debentures or debenture stock to rank *pari passu* with the five hundred thousand pounds of second debenture stock authorised by the Order of 1901:

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And whereas it is expedient that the other powers in this Order contained should be conferred on the Company:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited as the Highland Railway Order 1915. Short title.

2. The Railways Clauses Consolidation (Scotland) Act 1845 Part I. (relating to construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863 the clauses and provisions of the Companies Clauses Consolidation (Scotland) Act 1845 with respect to the following matters (that is to say):— Incorporation of Acts.

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by any subsequent Acts are except where expressly varied by this Order incorporated with and form part of this Order and this Order shall be deemed to be a special Act within the meaning of the Acts incorporated with this Order.

3. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be Interpretation.

A.D. 1915. something in the subject or context repugnant to such construction
Highland In this Order the expression—
Railway.

“The Company” means the Highland Railway Company;

“The Act of 1897” means the Highland Railway (Additional Powers) Act 1897;

“The Order of 1901” means the Highland Railway Order 1901;

“The Act of 1905” means the Highland Railway Act 1905;

“The Order of 1910” means the Highland Railway Order 1910.

Extension of
time for
completion
of railways
authorised
by Act of
1897.

4. The time limited by the Act of 1897 as extended by the Order of 1901 the Act of 1905 and the Order of 1910 for the completion of Railways Nos. 1 2 and 3 authorised by section 4 of the Act of 1897 is hereby further extended for a period of seven years from the sixth day of August one thousand nine hundred and fifteen and on the expiration of that period those powers shall cease except for so much of those railways as shall then have been completed.

Sanction of
widening of
Company's
railway
between
Clachna-
harry and
Clunes.

5. The construction by the Company of the widening of their railway between Clachnaharry and Clunes situate wholly in the county of Inverness commencing in the united parish of Inverness and Bona and burgh of Inverness by a junction with the railway of the Company at or near a point thereon fifty yards or thereabouts measuring along the said railway in an easterly direction from the bridge carrying the public road from Inverness to Beaully over the said railway and terminating in the parish of Kirkhill by a junction with the railway of the Company at or near a point one hundred yards or thereabouts measuring in an easterly direction from the footbridge across the railway at Clunes Station and the application of the funds of the Company to such construction and the purchase of lands and property therefor are hereby sanctioned and confirmed and the Company may maintain and work the said widening accordingly.

Widening to
form part of
undertaking
of Company.

6. The said widening of the Company's railway from Clachnaharry to Clunes shall for all purposes form part of the undertaking of the Company and the provisions of the Acts and Orders of the Company shall as regards tolls rates and charges and otherwise apply to the said widening to the same extent and effect as if such widening had been authorised by and constructed under the powers of the said Acts and Orders.

7. The North Eastern Railway Company and the Great Northern Railway Company and each of them shall have and be entitled to the same facilities rights and privileges over the widening of the railway by this Order authorised as are conferred on those companies respectively by section 29 (For protection of English East Coast Railway Companies) of the Highland Railway (Northern Lines Amalgamation) Act 1884.

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tion of North
Eastern and
Great North-
ern Railway
Companies.

8. The several rights powers facilities and privileges by the Highland Railway (Northern Lines Amalgamation) Act 1884 granted secured and provided as regards Caledonian traffic shall extend and apply in all respects to the widening of railway by this Order authorised.

Extending
Caledonian
Railway
Company's
facilities.

9. From and after the passing of the Act confirming this Order the amount which the Company are by the Order of 1901 authorised to raise by the creation and issue of second debenture stock shall be increased by the addition thereto of four hundred thousand pounds. The Company may raise the said sum of four hundred thousand pounds by the creation and issue at their option of mortgages bonds debentures or debenture stock or wholly or partially by one or more of those modes respectively. The mortgages bonds debentures or debenture stock created and issued by the Company in pursuance of this section shall rank *pari passu* with all second debenture stock of the Company created and issued or to be created and issued under the authority of the Order of 1901 and shall be deemed for all purposes to have been authorised by the Order of 1901.

Company
may issue
additional
mortgages
bonds de-
bentures or
debenture
stock.

10. Notwithstanding anything in this Order the Company shall not under the powers of this Order raise or borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Restriction
on raising
money
during war.

11. All money raised under this Order shall be applied for the purposes of this Order and for the general purposes of the Company to which capital is properly applicable.

Application
of money.

12. The Company shall not out of any money which they are by this Order authorised to raise pay or deposit any sum which by any standing order of either House of Parliament or by any General Order for the regulation of proceedings under the Private Legislation Procedure (Scotland) Act 1899 now or hereafter in force may be required to be deposited in respect of any application

Deposits for
future Bills
or Orders
not to be
paid out of
capital.

A.D. 1915. to Parliament or to the Secretary for Scotland for the purpose of obtaining an Act or Order authorising the Company to construct any railway or to execute any other work or undertaking.

*Highland
Railway.*

Provision as
to general
Railway
Acts.

13. Nothing in this Order contained shall exempt the Company or their railway from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

Expenses of
Order.

14. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Company.

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